

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR
MR. JUSTICE ISHTIAQ IBRAHIM
MR. JUSTICE MIANGUL HASSAN AURANGZEB

JAIL PETITIONS NO.736 AND 737 OF 2025

(Against the judgments dated 25.08.2025 passed by the High Court of Balochistan, Quetta in Criminal Appeal No.278 of 2023 with Murder Reference No.07/2023 and Criminal Appeal No.279 of 2023)

Abdul Shakoor
(in both cases)

...Petitioner(s)

VERSUS

The State
(in both cases)

...Respondent(s)

For the Petitioner(s): Syed Muhammad Tayyab Shah, ASC

For the State: Syed Pervez Bukhari, ASC, State counsel

Date of hearing: 09.03.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- Mst. Shukraya Bibi, daughter of Gulistan and sister of Rehmat Ullah, was married to Niamat Ullah, brother of the petitioner Abdul Shakoor. The prosecution's case as set out in First Information Report (FIR) No.30/2021, registered under sections 302, 324 and 34 of the Pakistan Penal Code, 1860 ('PPC') at Levies Station, Killa Saifullah on the report of informant Rehmat Ullah (PW.1), on 20.12.2021 he along with his family members was present in his house situated at *Killi Sheikhan Malazai, area Alorzai, Killa Saifullah* when at about 07:45 a.m., the petitioner Abdul Shakoor called him from outside. When the informant came out of his house, he saw the petitioner armed with shotgun rifle along with his brother/co-accused Niamat Ullah. An altercation ensued between them during which the petitioner made a fire at Rehmat Ullah, as a result, he sustained a firearm injury on his left arm. In

the meantime, Gulistan, father of the informant, came out of the house and the petitioner also fired at him with which he got hit and died on the spot. The petitioner along with the co-accused then entered the house of the informant and fired at his brother Ahmed Shah, as a result, he sustained injuries. The petitioner also fired at Mst. Palko Bibi, mother of the informant, as a result of which she received firearm injuries and died at the spot. The accused persons then forcibly took away Mst. Shukraya Bibi, wife of co-accused Niamat Ullah and sister of the informant, with them. The injured persons and the dead bodies of the deceased were shifted to the hospital. The matter was reported to the police by the informant Rehmat Ullah, upon which the aforementioned FIR was registered against the petitioner and his co-accused Niamat Ullah.

2. The petitioner Abdul Shakoor along with co-accused Niamat Ullah was arrested on 20.12.2021 by Abdul Ali, Defedar/Incharge Levies Station, Akhterzai. At the time of arrest, a semi-automatic shotgun rifle bearing No. C-7526 along with four live rounds was allegedly recovered from the possession of the petitioner, for which he failed to produce any valid licence or permit. Consequently, a separate FIR No.31/2021 dated 20.12.2021 under section 13-D of the Arms Ordinance, 1965 was registered against him.

3. Upon completion of investigation, separate challans in both the cases were submitted before the learned Sessions Judge, Killa Saifullah ("the Trial Court"). Upon conclusion of the trial in both the cases, the learned Trial Court vide judgments dated 22.06.2023, while acquitting the co-accused Niamat Ullah, convicted and sentenced the petitioner Abdul Shakoor as under:—

Under Section 302(b) PPC:- Sentenced to death on two counts and to pay Rs.4,00,000/-, each as compensation under section 544-A of the Code to legal heirs of each deceased and in default thereof to further undergo six months simple imprisonment on each count.

Under Section 324 PPC:- To undergo rigorous imprisonment for five years on two counts and to pay Rs.1,00,000/- as fine and in default thereof to further undergo six months simple imprisonment on each count.

Under Section 337-F(iii) PPC: To undergo three years rigorous imprisonment on two counts and to pay Rs.50,000/- , each to injured Rehmat Ullah and Ahmed Shah as Daman.

The sentences of imprisonment under section 324 and 337-F(iii) PPC were directed to run concurrently and benefit of Section 382-B of the Code was extended to the petitioner.

Under Section 13-D of the Arms Ordinance, 1965:-To undergo three years rigorous imprisonment and to pay Rs.20,000/- and in default thereof to further undergo two months simple imprisonment. Benefit of Section 382-B of the Code was extended to him.

4. The Balochistan High Court, Balochistan ("the High Court"), while dismissing Criminal Appeal No.278 of 2023, maintained the conviction and sentences of the petitioner-convict recorded by the learned Trial Court under sections 302(b), 324 and 337-F(iii) of the Pakistan Penal Code, 1860 ('PPC') and consequently answered Murder Reference No.07 of 2023 sent by the Trial Court for confirmation or otherwise of the death sentence, in the affirmative. Likewise, Criminal Appeal No.279 of 2023 of the petitioner-convict was also dismissed and his conviction and sentence under section 13-D of the Arms Ordinance, 1965 were upheld. Both the appeals were decided vide separate judgments dated 25.08.2025 ("the impugned judgments").

5. Feeling aggrieved by the impugned judgments, the petitioner-convict has filed the instant Jail Petitions seeking leave to appeal.

6. We have heard the learned counsel for the petitioner-convict as well as the learned State Counsel and have also perused the record, the evidence produced in the case, and the judgments passed by the Courts below.

7. Rehmat Ullah (PW.1) Mst. Bibi Kafia (PW.2), Ahmed Shah (PW.3) and Mst. Shukarya Bibi (PW.4), have furnished the ocular account of the occurrence. All are the inmates of the house in which the occurrence took place. Deceased Gulistan and Mst. Palko Bibi are the parents of PWs Rehmat Ullah, Ahmed Shah and Mst. Shukarya Bibi while in-laws of PW Mst. Bibi Kafia. Besides, PW Rehmat Ullah and Ahmed Shah have sustained firearm injuries in the occurrence. All the above-named witnesses in their statements have directly charged the petitioner-convict with specific role of firing at the two deceased and injured Rehmat Ullah and Ahmed Shah. Being a broad daylight occurrence and the petitioner-convict

being the close relative of the eyewitnesses, question of mistaken identity does not arise. PW Rehmat Ullah and Ahmed Shah, having stamp of injuries on their person, their presence at the spot at the time of occurrence cannot be doubted. Similarly, PWs Bibi Kafia and Mst. Shukarya Bibi being the female inmates of the same house, their presence inside the house at the time of occurrence is also quite natural. All the eyewitnesses are consistent with each other on all material particulars of the occurrence including the day, date, time and place of occurrence as well as the role of the petitioner-convict. They have been subjected to lengthy and taxing cross-examination but nothing beneficial to defence or adverse to the prosecution could be extracted from them. Nothing has been extracted from them so as to show their previous enmity with the petitioner-convict so as to suggest his false implication. Even otherwise, it is not appealable to prudent mind that the two injured eyewitnesses while spare the actual culprit of murder of their parents and causing them firearm injuries and will charge the petitioner-convict on whose brother their sister had been married. On scrutinizing the ocular account furnished by the eyewitnesses we are firm in our view that the same is straightforward, trustworthy and confidence inspiring.

8. The medical evidence furnished by Dr. Abdul Rehman (PW-8), who medically examined the injured Rehmat Ullah and Ahmed Shah and also conducted the postmortem examinations of Mst. Palko Bibi and Gulistan (deceased), fully supports the ocular account of the prosecution. According to the said witness, he noticed a dispersed firearm wound on the left side of the neck near the clavicle on the person of deceased Mst. Palko Bibi which resulted into her unnatural death. On the person of deceased Gulistan, he observed a large and irregular firearm wound on the frontal portion of the head covering the eyes and the area below the eyes extending to the mid of the nose which caused his unnatural death. Likewise, on the person of injured PW Rehmat Ullah he noticed an irregular dispersed firearm wound on the left arm, whereas injured PW Ahmed Shah had sustained an irregular firearm wound on the dorsum side of the forearm along with multiple small and tiny pellet

injuries on the left side of the chest near the shoulder. The nature, seat and dimension of the injuries noted by the doctor are in complete harmony with the ocular version furnished by the eyewitnesses and thus provide strong support to the prosecution case.

9. The prosecution has further relied upon the confessional statement of the petitioner-convict recorded before Farmanullah, Judicial Magistrate (PW-9). Although the petitioner-convict subsequently retracted from the said confession, yet a perusal of the statement of the learned Judicial Magistrate reveals that before recording the confession he had strictly observed all legal and codal formalities required under the law. The petitioner-convict was afforded sufficient time for reflection and was clearly warned that he was not bound to make any confession and that any statement made by him could be used against him. In response to questions No.6 and 7 put to him by the learned Magistrate, the petitioner-convict categorically stated that he had not been subjected to any torture nor he was compelled, induced or instigated by the Levies authorities to make the confession. The confessional statement so recorded finds full corroboration from the ocular account furnished by the eyewitnesses as well as from the medical evidence available on record. The learned Judicial Magistrate was cross-examined at length by the defence; however, nothing could be elicited from his testimony so as to suggest that the confessional statement of the petitioner-convict was involuntary or the result of any coercion, duress, inducement or promise.

10. The prosecution has also succeeded in proving the recovery of the shotgun along with four live cartridges of the same bore from the possession of the petitioner-convict at the time of his arrest through the testimony of Abdul Ali Dafedar (PW-1), and Sepoy Abdul Qayyum (PW-2), who was the marginal witness of the recovery memo through which the weapon was taken into possession. The recovered shotgun was sent to the Forensic Science Laboratory, Police Crime Branch Balochistan, Quetta, and the report received therefrom reveals that the weapon was found to be in working order.

11. Upon our independent appraisal of the evidence available on record, we are persuaded to hold that the learned Courts below, while appreciating the evidence in its true perspective, have rightly concluded that the prosecution has proved its case against the petitioner-convict beyond reasonable doubt and, therefore, no exception can be taken to the findings recorded by them. It is also pertinent to observe that the manner in which the occurrence was carried out reflects extreme brutality and callous disregard for human life on the part of the petitioner-convict. The record shows that the petitioner-convict not only caused the murder of two innocent persons but also inflicted firearm injuries upon two other members of the same family. The sanctity and safety of the home, traditionally regarded as the most secure refuge for individuals, was violated by the petitioner-convict through his violent intrusion and merciless use of lethal force. Such conduct demonstrates a degree of brutality, audacity and moral depravity which aggravates the gravity of the offence and reflects a complete disregard for the sanctity of human life. In these circumstances, the petitioner-convict does not deserve any leniency in the matter of sentence.

12. For the foregoing reasons, we find no ground to interfere with the well-reasoned judgments rendered by the Courts below. The sentences awarded to the petitioner-convict thus calls for no interference. Consequently, both the petitions are dismissed and leave is refused.

Islamabad the

9th March, 2026

Approved for Reporting

M.Siraj Afridi PS